

GUARANTY HOLDINGS v. RESORT AT LAKE TULLOCH et al
20CV44713

**PLAINTIFF'S MOTION FOR LEAVE TO FILE
FIRST AMENDED COMPLAINT**

This case involves a landlord-tenant dispute over the condition of the residence after being surrendered back to the homeowner. At the core of the dispute is defendants' removal of a floating boat dock. Before the Court is a motion by plaintiff for leave to file a First Amended Complaint.

Procedure

To amend a pleading already at issue, the sponsoring party is required first to seek leave of court by way of noticed motion. (CCP §473(a)(1).) Pursuant to CRC 3.1324, the moving party must: (a) specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and (b) include with the moving papers a copy of the proposed amended pleading and a declaration specifying (1) the effect of the amendment(s); (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request was not made earlier. From this Court's read of the papers, the motion is procedurally proper in all respects. Since defendants do not contend otherwise, this Court will move on to the substantive merits.

Substance

Motions for leave to amend a pleading are directed to the sound discretion of the court. (CCP §§ 473(a)(1) and 576.) This discretion, however, is to be exercised liberally in favor of allowing amendments. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Central Concrete Supply Co v. Bursak* (2010) 182 Cal.App.4th 1092, 1101-1102.) Courts may permit amendments at any stage in the proceedings, up to and including trial, so long there is no prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice exists where amendment would require delaying the trial, resulting in loss of critical evidence, or significant added litigation burden/costs. (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 486-488.) Prejudice is rare when the facts supporting a new cause of action first come to light during discovery. (*South Bay Building Enterprises, Inc. v. Riviera Lend-Lease, Inc.* (1999) 72 Cal.App.4th 1111, 1124-1125.) Although unexcused delays and lack of diligence may be considered, they alone are insufficient to deny leave. (See *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175; *Honig v. Financial*

Corp. of America (1992) 6 Cal.App.4th 960, 967; *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613.)

Defendants appear to believe that plaintiff has a “heavy” burden to justify leave to amend when sought almost three years post-commencement, but there is no pending trial date, no pending defense motions, and no suggestion of any prejudice to these moving parties (or others) with having to respond to plaintiff’s “new” theories of the case. In fact, the proposed amendments are not really “new” theories at all – just alternative ways to plead theories of liability. It seems that defendants’ real beef with the proposed amended pleading is that – according to defendants – the evidence does not support the claims or the continued prosecution of these claims against certain named defendants. In other words, defendants are frustrated with the case as a whole, not necessarily the proposed amendments per se. For better or worse, a court will not consider the validity of the proposed amendment in deciding whether to grant leave to amend and may not condition leave upon the submission of evidence substantiating the new claim(s). (*Sanai v. Saltz* (2009) 170 Cal.App.4th 746, 769-770; *Edwards v. Superior Court* (2001) 93 Cal.App.4th 172, 180; *Yee v. Mobilehome Park Rental Review Board* (1998) 62 Cal.App.4th 1409, 1429.)

In closing analysis, the published authorities affirming a trial court’s decision to *deny* leave to amend are few and far between. (See, e.g., *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175-176 [leave to add breach of contract claim five years later, and on the eve of MSJ, denied]; *Huff v. Wilkins* (2006) 138 Cal.App.4th 732, 746 [leave to add allegations of recklessness brought three days before hearing on MSJ denied]; *Emerald Bay Community Assn v. Golden Eagle Ins Co.* (2005) 130 Cal.App.4th 1078, 1097 [leave to amend to add assignment/ contribution claim brought post-trial denied].) This is not one of those rare cases.

Motion for leave to file a First Amended Complaint is GRANTED. Plaintiff shall file and serve the FAC within 10 days. The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

CERRUTI v. DEVOTO et al

21CV45366

**PLAINTIFFS' MOTION FOR LEAVE TO FILE
FIRST AMENDED COMPLAINT**

This is an unlimited jurisdiction quiet title action involving potential clouds over the chain of title associated with APN 052-016-009, commonly referred to as the Garibaldi Quartz Lode Mining Claim, Lot Number 45, Survey No. 3502 embracing a portion of Section 24, Township 3 North of Range 12 East M.D.M. in the Angels Mining District, Calaveras County, California (hereinafter referred to as "subject property"). There is a related action (17CV42758).

Before the Court is a motion by plaintiff for leave to file a First Amended Complaint. No opposition is noted, though it is further noted that plaintiffs have not served any of the defendants and apparently intend to seek permission to serve by publication at some point into the future. Since plaintiffs "may amend [their] pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed," and since none of those events occurred, there is no need to seek leave of Court and plaintiffs can simply file a First Amended Complaint. (See, e.g., *Hedwell v. PCMV, LLC* (2018) 22 Cal.App.5th 564, 573-575.) However, since plaintiffs are here seeking judicial intervention, it is important to point out that counsel's declaration does not adequately track CRC 3.1324. In addition, while counsel's candor regarding the impetus behind the newly-filed 2021 case is much appreciated, the named parties in the 2017 action were already dismissed, and the current parties in the 2021 action (Charles Devoto, Christina Huberty, Annie Austin, and Sarah Singer) were entitled as a matter of law to dismissal in the 2017 action for failure to effectuate service of the summons. (See CCP §§ 583.210, 583.250.) This is a mandatory dismissal without many exceptions. (See *Inversiones Papaluchi S.A.S. v. Superior Court* (2018) 20 Cal.App.5th 1055, 1061.) Moreover, the statute provides that "no further proceedings shall be held in the action." (§583.250(a)(1).) Thus, it appears as though most of the 2021 action – including the desire to add more parties – would ultimately be improper. The fact that some or many of the defendants will not make a claim to the property and could serve simply as nominal parties is important (i.e., Vickie already giving a quit claim), but that is not to be assumed at this juncture. Plaintiffs will either have to navigate around estoppel issues or secure consent from the others for the sake of having a clean title.

Motion for leave to file a First Amended Complaint is deemed MOOT and not ruled upon as plaintiffs can proceed without leave of court. The Clerk shall provide notice of this Ruling to the parties forthwith. No further order is required.